

*Number* 23 *of* 2014

# NATIONAL TREASURY MANAGEMENT AGENCY (AMENDMENT) ACT 2014

**REVISED**

**Updated to 17 December 2018**

This Revised Act is an administrative consolidation of the *National Treasury Management Agency (Amendment) Act 2014*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Fossil Fuel Divestment Act 2018* (29/2018), enacted 17 December 2018, and all statutory instruments up to and including *Registered European Lawyers Qualifying Certificate Regulations 2018* (S.I. No. 560 of 2018), made 17 December 2018, were considered in the preparation of this Revised Act.

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# NATIONAL TREASURY MANAGEMENT AGENCY (AMENDMENT) ACT 2014

**REVISED**

**Updated to 17 December 2018**

An Act to provide for and in connection with the reconstitution of the National Treasury Management Agency; to confer on that Agency new functions relating to State bodies and assets and proposals for investment; to transfer to that Agency functions of the National Development Finance Agency relating to infrastructure; to provide for the delegation to, and conferral on, the National Treasury Management Agency of functions in relation to the management of certain claims for costs of a legal nature against, or in favour of, the State and certain related functions; to provide for the Ireland Strategic Investment Fund and the transfer to it of the assets and liabilities of the National Pensions Reserve Fund and to provide for its management by the National Treasury Management Agency; to provide for the dissolution of the National Pensions Reserve Fund Commission, the National Development Finance Agency and certain committees; for those and other purposes to amend the National Treasury Management Agency Act 1990, the National Treasury Management Agency (Amendment) Act 2000 and certain other enactments and to repeal the National Pensions Reserve Fund Act 2000, the National Development Finance Agency Act 2002 and certain other enactments; to amend the State Authorities (Public Private Partnership Arrangements) Act 2002 and the Social Welfare Consolidation Act 2005; and to provide for related purposes.

[26 *th July*, 2014]

**Be it enacted by the Oireachtas as follows:**

## PART 1

### Preliminary and General

**Short title, collective citation, construction and commencement**

**1.** (1) This Act may be cited as the National Treasury Management Agency (Amendment) Act 2014.

(2) This Act and the National Treasury Management Agency Acts 1990 and 2000 may be cited as the National Treasury Management Agency Acts 1990 to 2014 and shall be construed together as one.

(3) This Act shall come into operation on such day or days as the Minister may appoint by order or orders generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

**Definitions**

**2.** In this Act—

"Act of 1990" means National Treasury Management Agency Act 1990;

(b) the person who chairs the Committee may, on behalf of the Committee, make such an application,

and the High Court shall determine the matter.

(6) Pending the determination of an application under subsection (5), the Chairperson and the Chief Executive shall not attend before the Committee to give account for the matter the subject of the application.

(7) If the High Court determines that the matter concerned is one to which subsection (3) applies, the Committee shall withdraw the request referred to in subsection (2), but if the High Court determines that subsection (3) does not apply, the Chairperson and the Chief Executive shall attend before the Committee to give account for the matter.

(8) In the performance of his or her duties under this section, the Chairperson and the Chief Executive shall not question or express an opinion on the merits of any policy of the Government or a Minister of the Government or on the merits of the objectives of such a policy."

**Disqualification of members of staff**

**13.** The Act of 1990 is amended by substituting the following for section 10:

**"Membership of Oireachtas, European Parliament or local authority by members of staff**

**10.** (1) A person who is a member of either House of the Oireachtas, the European Parliament or a local authority is disqualified from being employed in any capacity by the Agency.

(2) Where a member of staff of the Agency—

(a) is nominated as a member of Seanad Éireann,

(b) is elected as a member of either House of the Oireachtas or to be a member of the European Parliament,

(c) is regarded, pursuant to Part XIII of the Second Schedule to the European Parliament Elections Act 1997, as having been elected to the European Parliament, or

(d) becomes a member of a local authority,

he or she shall thereupon stand seconded from employment by the Agency and shall not be paid by, or be entitled to receive from, the Agency any remuneration or allowances in respect of the period commencing on such nomination or election or when he or she is so regarded as having been elected or becomes a member of a local authority (as the case may be), and ending when such person ceases to be a member of either such House or a member of the European Parliament or local authority.

(3) A period mentioned in subsection (2) shall not, for the purposes of any superannuation benefit, be reckoned as service with the Agency."

**Accounts and audit**

**14.** Section 12 of the Act of 1990 is amended—

(a) by substituting the following for subsection (2):

"(2) Accounts kept in pursuance of this section shall be signed by the Chief Executive (who shall be the officer accountable for such accounts for the purposes of the Comptroller and Auditor General Acts 1866 to 1998) and an appointed member.

(2A) Accounts kept in pursuance of this section shall be submitted by the Agency to the Comptroller and Auditor General for audit as soon as